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IN THE

Supreme Court of the United States

OCTOBER TERM, 1998

WARNER JACKSON, *et al.*, *Petitioners,*

v.

JOHN T. BENSON, *et al.*, *Respondents.*

MILWAUKEE TEACHERS' EDUCATION ASSOCIATION, *et al.*, *Petitioners,*

v.

JOHN T. BENSON, *et al.*, *Respondents.*

NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE, *et al.*, *Petitioners,*

v.

JOHN T. BENSON, *Respondent.*

On Petition for Writ of Certiorari to the Supreme Court of Wisconsin

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BRIEF *AMICUS CURIAE* OF THE ANTI-DEFAMATION LEAGUE IN SUPPORT OF A PETITION FOR WRIT OF CERTIORARI

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INTEREST OF THE *AMICUS CURIAE*[1]

The Anti-Defamation League (ADL) was organized in 1913 to advance good will and mutual understanding among Americans of all creeds and races, and to combat racial and religious prejudices in the United States. The ADL has always adhered to the principle that these goals, and indeed the general stability of our democracy, are best served through the separation of Church and State and the preservation of the fundamental right to free exercise of religion. Over the last several decades, in an effort to further this value, the ADL has participated in almost every Establishment Clause case to reach this Court.

ARGUMENT

I. THE WISCONSIN SUPREME COURT'S DECISION IN *JACKSON v. BENSON* MANIFESTLY VIOLATES THE ESTABLISHMENT CLAUSE

The principles embodied in the Establishment Clause are far too important to be subjected to a referendum on the quality of our inner city public schools. These principles cannot and should not be compromised, notwithstanding the difficult problems state and local governments admittedly must confront regarding the state of public education in our urban communities. The

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[1] The parties have consented to the filing of this brief. Copies of the letters of consent have been filed with the Clerk of the Court. This brief was not authored in whole or in part by counsel for a party, and no person or entity, other than *amicus curiae* and their counsel, made a contribution to the preparation and submission of this brief.

amended Milwaukee school voucher program pays for a religious education. It puts the state in the position of financing religious indoctrination. It directly entangles Church and State. It is unconstitutional.

The Wisconsin Supreme Court, in *Jackson v. Benson*, 578 N.W.2d 602 (Wis. 1998), flagrantly contradicted settled Establishment Clause jurisprudence when it upheld the amended Milwaukee school voucher program. This Court has long held that public funds may not be used for the support of religious institutions, and expressly applied this rule to state funding of pervasively sectarian schools in *Committee for Public Educ. v. Nyquist*, 413 U.S. 756 (1973). The doctrine of separation of Church and State dates back to the founding of this nation and the creation of the Establishment Clause; this Madisonian doctrine which spurns public funding of religious institutions is recorded in *Memorial Remonstrance Against Religious Assessments*, reprinted as an Appendix to *Everson v. Board of Educ.*, 330 U.S. 1, 63-72 (1947). The Court has applied this principle more formulaically through the announcement of the pervasively sectarian test in *Hunt v. McNair*, 413 U.S. 734, 743 (1973): "Aid normally may be thought to have a primary effect of advancing religion when it flows to an institution in which religion is so pervasive that a substantial portion of its functions are subsumed in the religious mission. . . ."

Curiously, the Wisconsin Supreme Court never questioned that the religious schools which qualify for participation under the amended Milwaukee school voucher experiment are pervasively sectarian. That the religious mission of some of the sectarian schools

participating in Milwaukee's amended voucher program is both overt and intimately intertwined with the teaching of secular subjects is clear from the materials these schools have provided. Some representative mission statements are as follows:

> "In keeping with the purpose of our school, our curriculum is taught in the setting of God's Word. Religion is not only taught as a subject, but our teachers have been trained to integrate God's Word across the curriculum. . . . Our curriculum offerings place Christ as the focal point of all study."
>
> "The message of Jesus is taught in religion classes and other curricular areas. . . . Because of the nature of a Catholic school, religion is taught daily as part of the curriculum. Catholic values are also incorporated into all other aspects of the curriculum."
>
> "The Bible forms the core and center upon which all instruction is based. . . . All subjects are taught by a Christian teacher in the light of God's Word, emphasizing God's love for all men through Jesus."

Jackson v. Benson, 570 N.W.2d 407, 413 (Wis. App. 1997), *rev'd*, 578 N.W.2d 602 (Wis. 1998).

Given the uncanny similarities between this case and this Court's decision in *Nyquist*, *amicus curiae* finds the Wisconsin Supreme Court's decision wholly indefensible. *Nyquist* involved a tuition-reimbursement plan for low income parents whose children attended private secular and sectarian schools. *Nyquist*, 413 U.S. at 780. This Court declared the New York statute at issue in *Nyquist* unconstitutional precisely because the plan

provided no guarantee that public funds would be used exclusively for "secular" and "nonideological" purposes. *Id.* The amended Milwaukee school voucher program similarly provides no guarantee that public funds will not be used for pervasively sectarian purposes. The ability of parents to use vouchers at non-sectarian schools simply does not relieve the state of responsibility for constitutional encroachment when state funds are used by, and at the discretion of, the religious institutions which comprise the overwhelming majority of participating schools. *Nyquist* also rejected the notion that transferring public funds to pervasively sectarian institutions via the parents of participating children rendered the otherwise unconstitutional plans constitutional.

In addition, since the Wisconsin Supreme Court in *Jackson* misapplied the three-prong Establishment Clause compliance test first articulated in *Lemon v. Kurtzman*, 403 U.S. 602 (1971), it is necessary to remedy that critical error. The court failed to present any meaningful analysis of statutory purpose, beyond the summary statement that a secular purpose is presumed under *Mueller v. Allen,* 463 U.S. 388, 394 (1983). *Amicus curiae* submits that any suggestion that the designation "educational choice" magically transforms the amended Milwaukee school voucher program into an educationally neutral program is a breach of constitutional integrity. Axiomatically, it follows then, teachers can lead sectarian prayers in the classroom as long as they designate the exercise as a "classroom choice." The *Jackson* court also failed to consider the purpose of the amended Milwaukee school voucher program independent of the purpose of the original Mil-

waukee voucher program, which reveals statutory modifications made for the sole purpose of advancing religion and strengthening religious institutions.

The Wisconsin Supreme Court, in its analysis of the effects of the amended Milwaukee school voucher program under *Lemon*'s second prong, focused exclusively on the "neutrality" of the statute and failed to consider the coercion test and endorsement test this Court has previously employed to assess the effects of a statute or activity. *See Lee v. Weisman*, 505 U.S. 577 (1992); *County of Allegheny v. ACLU*, 492 U.S. 573 (1989). While neutrality is unquestionably a facet of Establishment Clause analysis, it has never been held out as the sole controlling test for determining whether a statute has the effect of advancing religion under *Lemon*. Over the past decade, this Court has introduced additional tests which should have been applied to the amended Milwaukee school voucher program. The Wisconsin Supreme Court in *Jackson*, therefore, erred in relying solely on the neutrality test. Had the Wisconsin Supreme Court applied systematically the full range of tests furnished by this Court to ensure compliance with the effects prong of *Lemon*, it would have concluded that the amended Milwaukee school voucher program has the effect of advancing religion.

Clearly, there is dissension and a lack of clarity among the federal circuits and state courts regarding current Establishment Clause jurisprudence. The Fifth Circuit, in *Jones v. Clear Creek Indep. Sch. Dist.*, 977 F.2d 963 (5th Cir. 1992), applied the three prongs of *Lemon*, and also applied the coercion and endorsement tests independent of its *Lemon* analysis. More recently,

however, the Ninth Circuit, in *Doe v. Madison Sch. Dist. No. 321*, 147 F.3d 832 (9th Cir. 1998), failed to consider either the neutrality or endorsement tests, but did apply the coercion test independent of the *Lemon* test. In the aggregate, these decisions significantly conflict with the analysis used by the Wisconsin Supreme Court, which strategically incorporated the neutrality test into its application of *Lemon*'s effects prong, but disregarded both the coercion and endorsement tests announced by this Court. For the sake of Establishment Clause jurisprudential consistency, courts cannot be allowed to freely pick and choose which precedents and doctrines they wish to apply in a given case.

In addition, the "entitlements" furnished by the amended Milwaukee school voucher program provide a financial incentive for existing sectarian schools to expand, and for new schools to open, in reliance upon the public for funding. This Court specifically discussed this potential for expansion in *Nyquist*:

> . . . [A]id programs of any kind tend to become entrenched, to escalate in cost, and to generate their own aggressive constituencies. . . . In this situation, where the underlying issue is the deeply emotional one of Church-State relationships, the potential for seriously divisive political consequences needs no elaboration.

Nyquist, 413 U.S. at 797-98. If this Court does not act in this case, the inevitable entrenchment and escalation of the amended school voucher program in Milwaukee, and other programs nationwide, threatens to entangle the government with religious institutions well beyond constitutionally permissible bounds. To the extent that such entanglement is permitted, it will, as a practical

matter, be virtually impossible to modify or restrict the funding of pervasively sectarian schools without making budgetary decisions on a sectarian basis.

The Establishment Clause confusion, further exacerbated by the Wisconsin Supreme Court in *Jackson* and evidenced by disparate goal-oriented analyses in lower court decisions, is in immediate need of redress. In the absence of this Court's immediate action, the erosion of the Establishment Clause will likely be irreparable.

II. PUBLIC SCHOOLS ARE THE CORNERSTONE OF A DEMOCRACY

Permitting the amended Milwaukee school voucher experiment to continue not only abridges the Establishment Clause, but also undermines the deep-rooted societal value of public education and permits state and local governments to delegate away their responsibility to educate the youth of this country and to inculcate them with community values. As the Court eloquently acknowledged over forty years ago:

> Today, education is perhaps the most important function of state and local governments. Compulsory school attendance laws and the great expenditures for education both demonstrate our recognition of the importance of education to our democratic society. It is required in the performance of our most basic public responsibilities, even service in the armed forces. It is the very foundation of good citizenship. Today it is a principal instrument in awakening the child to cultural values, in preparing him for later professional training, and in helping him to adjust normally to his environment. . . .

Brown v. Board of Educ., 347 U.S. 483, 493 (1954). The proponents of the amended Milwaukee voucher experiment ignore not only the special status public schools have as shapers of values, ideas and knowledge which are central to the notion of community and the ability to exercise fundamental constitutional rights, but also disregard almost half a century of jurisprudence recognizing this critical link between public education and the common good of our democracy.[2]

Public education is fundamental to a democratic society, for it has responsibility for transmitting the very values and skills which sustain it. Commenting on public education in general, this Court has noted that "[t]he classroom is peculiarly the 'marketplace of ideas.'" *Keyishian v. Board of Regents*, 385 U.S. 589, 603 (1967). Certain lessons cannot be taught in an environment filtered to exclude the vast majority of the populace. *Wygant v. Jackson Bd. of Educ.*, 476 U.S. 267, 315 (1986) (Stevens, J., dissenting) ("[O]ne of the most important lessons that the American public schools teach is that the diverse ethnic, cultural, and national backgrounds that have been brought together in our famous

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[2] *See Plyler v. Doe*, 457 U.S. 202, 221 (1982) (public education is not "merely some governmental 'benefit' indistinguishable from other forms of social welfare legislation"); *Wisconsin v. Yoder*, 406 U.S. 205, 221 (1972) (education is necessary to "prepare citizens to participate effectively and intelligently in our open political system. . ."); *School Dist. of Abington v. Schempp*, 374 U.S. 203, 230 (1963) (Brennan, J., concurring) (public education is a "most vital civil institution for the preservation of a democratic system of government"); *Meyer v. Nebraska*, 262 U.S. 390, 400 (1923) ("The American people have always regarded education and acquisition of knowledge as matters of supreme importance. . . .").

'melting pot' do not identify essential differences among the human beings that inhabit our land."). Only in and through public schools do children learn how to live together in a pluralistic and often difficult world. *Wisconsin v. Yoder*, 406 U.S. 205, 221 ("education prepares individuals to be self-reliant and self-sufficient participants in society").

Giving up on public schools by diverting public funds to private schools is not a community solution to a community problem. Government, acting in the interest of the public good, must act in a supportive way toward an institution as important as public schools rather than abandon the citizens and the public infrastructure of our urban communities. Whatever the solutions are to the problems of our public schools, they are to be found not in so-called private school "choice," but in unwavering support for both the public schools in our troubled urban communities and the parents and children who look to those schools to prepare them to realize some measure of the American dream.

Providing public schools ranks at the very apex of the functions of a State. *Yoder*, 406 U.S. at 213. For this reason, virtually every state provides a mandate for public education for its children in its constitution. *San Antonio Indep. Sch. Dist. v. Rodriguez*, 411 U.S. 1, 111-112 (1973) (Marshall, J., dissenting) ("No other state function is so uniformly recognized as an essential element of our society's well-being."). Removing children from the public school mix and diverting them to private—let alone religious—institutions compromises this objective. The plan articulated in Milwaukee's original voucher experiment reflects a shift of the

state's responsibility for providing a public education to the private arena. The amended school voucher program would allow Wisconsin to abdicate further its fundamental role of providing its children a public education. Quite simply, paying for private education—which allows governments to escape all but their financial responsibility—does not achieve the same public good as providing a public education. Respondents fail to acknowledge the central responsibility public schools have in a democratic society. If public schools are troubled, the way to improve them, while promoting the public good, is to fix them, not to abandon them.

Moreover, diverting public funds to private schools will not improve the overall education of our children. It is true that the public schools in Milwaukee, as well as those in many of our other major cities, do not always achieve perfection in their goal of teaching our children. In contrast, the state-mandated data collected on the amended Milwaukee school voucher experiment shows mixed results at best. The Wisconsin Department of Public Instruction commissioned Professor John F. Witte of the University of Wisconsin-Madison Department of Political Science to evaluate the voucher experiment.

In his reports, Witte and his researchers conclude that students participating in the original Milwaukee school voucher program did not perform better than their counterparts attending public schools. Witte reported that "[o]utcomes after five years of the Choice Program remain mixed." John F. Witte, et al., *Fifth-Year Report Milwaukee Parental Choice Program*, Executive Summary, Dept. Political Science and The

Robert M. La Follette Institute of Public Affairs at the Univ. of Wis.–Madison (Dec. 1995). Specifically, "reading scores increased in the first year, fell substantially in the second year, and have remained approximately the same in the next three years. . . . In math, choice students were essentially the same in the first two years, recorded a significant increase in the third year, and then significantly declined this last year." *Id. See also* John F. Witte & Christopher A. Thorn, *Fourth-Year Report Milwaukee Parental Choice Program,* Executive Summary, Dept. of Political Science and The Robert M. La Follette Institute of Public Affairs at the Univ. of Wis.–Madison (Dec. 1994). In contrast, the success of other states' public education reforms shows that commitment to improving educational achievement can be attained without sacrificing public school systems. As United States Secretary of Education, Richard W. Riley, has stated, "Vouchers are a pessimist's response to the problems facing some of our public schools. The way to improve schools is not to give up on them, but to raise academic standards, restore discipline, promote more parental involvement and get computers into the classroom." Richard W. Riley, *Address at Families First Forum* (July 24, 1996) (transcript available in U.S. Senate Web Page (http://www.senate.gov/~dpc/families_first/riley.html)).

At a time when parents and educators are demanding increased achievement and accountability in public education, it is no surprise that some state and local governments uncomfortable with tackling these challenges are starting to turn to privatization as a panacea. The amended Milwaukee school voucher program provides the Wisconsin government a means to escape

a difficult responsibility by paying for public school students to attend private schools. The Wisconsin Legislature's 1995 amendments to the voucher experiment cleverly eliminate the evidence of non-achievement and escape accountability by ending all funding for data collection and evaluations, effectively eradicating critical study of the voucher experiment. *See* 1995 Wis. Legis. Serv. 27, §§ 4007(m), 4008(m).

The amended Milwaukee school voucher program presents questions no less important than under what conditions a democracy can or cannot function. In the final analysis, the issue is how we perceive our collective responsibilities to each other. As has been suggested,

> Education is more important than ever as our nation adapts to tremendous changes in the economy, technology, and even the structure of our society. If providing the best possible education to all children remains something Americans value, then we owe it to ourselves to make sure our public school system is as strong as we can make it. In the end, public schools reflect the needs, desires, and concerns of the public itself—all of us. Our schools will only be as strong, as fair, as equitable, and as well funded as we demand that they be.

School Funding: How much do we value good public education?, Our Children Mag., Nov./Dec. 1996. Unambiguous support for an all-inclusive public school system is an absolute necessity for a free and democratic society.

III. THIS COURT SHOULD SETTLE THE QUESTION NOW

Because this case not only implicates fundamental constitutional principles, but also affects the settled expectations of millions of children, parents, educators and legislators, the Court should consider the issues presented by the Wisconsin Supreme Court's holding in *Jackson* now instead of deferring review to a later date. The constitutionality of voucher programs which remove children from public schools and place them in private institutions, including religious schools, is ripe for review. The possibility that the education of our nation's children may be compromised warrants immediate action in and of itself. Additionally, deferment will be construed as tacit approval of Milwaukee's amended school voucher program, and numerous other state and local governments will surely follow suit. In short, there will be no more opportune moment to provide an answer to the Establishment Clause questions on which this case hinges.

Amicus curiae recognizes that the public education system in this country often struggles to achieve its educational goals and that many urban systems are undergoing restructuring. Government attempts to ameliorate the existing problems have sparked the current wave of experimentation with alternatives to public schools.[3] The amended Milwaukee school vouch-

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[3] In its decision, the Wisconsin Supreme Court repeatedly noted that the Milwaukee vouchers are "experimental." *Jackson v. Benson*, 578 N.W.2d 602, 625-26 (Wis. 1998). The preliminary results provide no reliable evidence that the Mil-

(continued...)

er program therefore is only one of a series of such programs being considered and implemented throughout the nation, all of which have, or undoubtedly will, face constitutional challenges. *See, e.g., Simmons-Harris v. Goff*, Nos. 96APE08-982, 96APE08-991, 1997 WL 217583 (Ohio Ct. App. May 1, 1997).

State and local governments will view delay by this Court in reviewing the constitutionality of the amended Milwaukee school voucher program as effectively endorsing the abandonment of public school systems. This undoubtedly will result in the exponential growth of voucher programs and a new *status quo* where public education in schools committed to inculcate religious teachings and values is commonplace. Instead of defending the fundamental purpose of public education and focusing on meaningful reform, governments will continue to abdicate that responsibility and divert financial and intellectual resources to the privatization of public schooling, notwithstanding the danger that

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[3] (...continued)
waukee voucher program improves academic achievement. *See, e.g.*, John F. Witte, et al., *Fifth-Year Report Milwaukee Parental Choice Program,* Dept. of Political Science and The Robert M. La Follette Institute of Public Affairs at the Univ. of Wis.–Madison (Dec. 1995); John F. Witte & Christopher A. Thorn, *Fourth-Year Report Milwaukee Parental Choice Program*, Dept. of Political Science and The Robert M. La Follette Institute of Public Affairs at the Univ. of Wis.–Madison (Dec. 1994); John F. Witte, *Reply to Greene, Peterson and Du: "The Effectiveness of School Choice in Milwaukee: A Secondary Analysis of Data from the Program's Evaluation," The Milwaukee Parental Choice Program,* Dept. of Political Science and the Robert La Follette Institute of Public Affairs at the Univ. of Wis.–Madison (Aug. 1996).

such programs may be unconstitutional. This Court's refusal to act now, in other words, will itself be deemed a tacit approval of the abdication of public responsibility to face difficult educational reform issues.

Postponing review will also threaten the stability of basic education provided to millions of schoolchildren. First, with every class of children culled from the public school rolls, the infrastructure of our public school system will erode. The passage of time will only compound the effects of this deterioration and have a devastating impact upon the poorest and most disadvantaged children.

Second, families structure their affairs—such as choosing where to live, where to be employed and how much money to spend on their children's education—in reliance upon existing laws. Postponing a decision on the constitutionality of these voucher programs will disrupt the basic life decisions of millions of people. Given the relatively straightforward constitutional issues presented by this case, the Court ought to address them now. In short, to borrow from Benjamin Franklin, this case presents this Court the opportunity to render an ounce of prevention now rather than a pound of cure later.

CONCLUSION

For the reasons stated, a writ of certiorari should be granted.

Respectfully submitted,

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